

**Important Information for Tentative Rulings and Hearings:**

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to [Department403@sftc.org](mailto:Department403@sftc.org).
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to [Department404@sftc.org](mailto:Department404@sftc.org).
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to [Department414@sftc.org](mailto:Department414@sftc.org).
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT  
UNIFIED FAMILY COURT  
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to [www.zoom.com/join](https://www.zoom.com/join) and follow the instructions below:
  - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
  - Click "Launch Meeting" then "Open zoom.us".
  - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
  - Enable your camera and click "Join".
  - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
  - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
  - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

**Department 403**  
**Meeting ID: 161 463 0304**  
**Passcode: 114482**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

**Department 404**  
**Meeting ID: 161 305 3325**  
**Passcode: 282709**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVMkQkowckJSNnJwSSStYkR6dz09>

**Department 414**  
**Meeting ID: 161 123 0725**  
**Passcode: 040696**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

**PROHIBITION ON RECORDING:** **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

SERGIO TORRES,

Respondent

) Case Number: FCS-18-353130

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF VISITATION (PARENTING TIME)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Respondent Sergio Torres (Father) and Other Parent Marjorie Nishimata (Mother). The minor child subject to this proceeding is Akira (DOB: May 18, 2018).
- 2) On January 28, 2025, Judge Roeca signed a Findings and Order After Hearing (FOAH) that: (a) reaffirmed joint legal and joint physical custody of the child (see FOAH filed January 10, 2023); and (b) reaffirmed Mother's weekly parenting time from Friday at 6 pm to Sunday at 6 pm (see FOAH filed August 4, 2023). The court also reaffirmed that the child would attend school in Napa with exchanges at the Berkeley Police Department.
- 3) On June 17, 2025, Mother filed an ex parte Request for Order to Change Visitation (Parenting Time) requesting two additional days with the child and that the child begin autism therapy via Zoom.
- 4) The Request for Order to Change Visitation was set on August 18, 2025, and then continued three times (to September 29, 2025, then to November 10, 2025, then to January 13, 2026).

- 5) On October 27, 2025, Mother filed a declaration stating that the paternal grandparents, Noelia Rivera and Jose Torres, harass her during the exchanges and requesting “for one or two days more with my son.”
- 6) On December 17, 2025, Father filed a Responsive Declaration requesting that either the paternal grandfather or paternal grandmother or the paternal uncle, Christian Torres, be allowed to conduct the custody exchanges and that the paternal uncle be allowed to drop off and pick up the child from school. Father further requests that Mother show proof of a valid driver’s license and provide employment information and the address where she resides. Father also requests that Mother not to disturb the child during his swimming lessons.
- 7) On December 17, 2025, the paternal grandmother, Noelia Rivera, filed a declaration denying that she follows, harasses, or threaten Mother or the child (her grandson) during custody exchanges.
- 8) On December 31, 2025, Mother filed a Request to Reschedule seeking a hearing date after February 6, 2026. Mother’s Request to Reschedule was denied on January 8, 2026.
- 9) On January 5, 2026, both parties attended mediation, but they did not reach an agreement.
- 10) On January 13, 2026, the Court adopted its tentative ruling. Within its tentative ruling (which is now an order of the Court) the Court ordered: “All other outstanding issues are continued to June 4, 2026 at 9:00 a.m., in Dept. 403. At least 10 days in advance of the hearing date, both parties may file and serve updated declarations.”
- 11) On May 19, 2026, Father filed a declaration, which has been read and considered by the Court.
- 12) On May 28, 2026, Father filed an additional declaration in which he raised additional concerns including that Mother was still driving the children without a valid California Driver’s License.

## **B. Findings and Order**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court admonishes Mother that she is not to transport the minor child, unless and until she has a valid California Driver’s License. If Father presents evidence that Mother continues to transport the child, while not possessing a valid California Driver’s License, the Court will view

1 Mother's conduct as not in the child's best interests and consider terminating Mother's parenting  
2 time.

3 3) The Court declines to make any further modifications to the existing custody and visitation  
4 orders. All existing orders, not in conflict with the orders made herein, shall remain in full force  
5 and effect.

6 4) The Court will prepare the Findings and Order After Hearing.  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

LARS B AMBLE,

Petitioner

VS.

ANTONIA TRIVYZA,

Respondent

) Case Number: FMS-16-386886

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Lars B Amble (Father) and Respondent Antonia Trivyza (Mother).  
They share one minor child: Kai Benjamin Amble (DOB: 09/24/12).
- 2) On October 23, 2025, Father filed a Request for Order seeking modification of custody and visitation and Family Code section 271 sanctions for attorney's fees and costs. Father requests the following orders:
  - a. Sole legal custody;
  - b. Sole physical custody;
  - c. Modification of parenting time such that Mother has parenting time on alternate weekends from Friday to Sunday;
  - d. In the alternative, a custody evaluation or a brief focused assessment to "shed light on the custody arrangement;" and
  - e. \$15,000 in Family Code section 271 sanctions for attorney's fees and costs. See attorney declaration filed October 23, 2025.

- 1       3) On November 14, 2025, Mother filed a Responsive Declaration to Father's October 23, 2025,  
2       Request for Order.
- 3       4) On January 16, 2026, Father filed a Reply Declaration, which has been read and considered by  
4       the Court.
- 5       5) On January 16, 2026, a Declaration of Erica Whitelaw was filed, which has been read and  
6       considered by the Court.
- 7       6) On January 16, 2026, a Declaration of Autumn Teeter was filed, which has been read and  
8       considered by the Court.
- 9       7) On January 16, 2026, a Declaration of Hatun Noguera was filed, which has been read and  
10      considered by the Court.
- 11     8) On January 29, 2026, the Court issued the following orders:
  - 12       a. Mother and Father shall continue to have joint legal custody.
  - 13       b. Effective immediately, Father shall have sole physical custody.
  - 14       c. Mother's parenting time with the minor child shall be on the 1<sup>st</sup>, 3<sup>rd</sup> and 4<sup>th</sup> weekends of  
15       each month from Friday after school until Sunday at 5:00 p.m. Mother shall pick up the  
16       minor child after school on Fridays and Mother shall return the minor child to Father on  
17       Sundays at 5:00 p.m., with the exchange to take place at the Starbucks located at the  
18       intersection of Geary and Masonic in San Francisco, CA. This schedule shall commence  
19       on Sunday, February 1, 2026, at 5:00 p.m., with the exchange at Starbucks.
  - 20       d. The Court grants Mother's request for a Tier II.
  - 21       e. The parties shall return to Court on April 16, 2026 to review outcome of the Tier II  
22       assessment.
- 23     9) On April 16, 2026, the Court issued the following orders:
  - 24       a. Mother and Father shall continue to have joint legal custody of the minor child.
  - 25       b. Effective immediately, the parties shall share joint physical custody of the minor child.
  - 26       c. Effective immediately, the custodial schedule is altered to be a flexible schedule which  
27       permits the minor to spend time at Mother's or Father's home at his own discretion.  
28       Should the minor child wish to transfer from one party's home to the other, each parent  
29       shall take the steps necessary to facilitate that transfer.

- 1 d. The Court orders that the minor child will begin reconciliation therapy to address the  
2 concerns raised by the minor child in the Tier II interview and the minor child's  
3 resistance to spending time with Father.
- 4 e. Father shall select the reconciliation therapist, and the selected therapist will work with  
5 Father and the minor child. Both parties shall cooperate in full with the therapeutic  
6 process as designed by the selected reconciliation therapist, based on his or her  
7 determination of the minor child's best interests. Notwithstanding the foregoing, the  
8 reconciliation therapist shall discuss with Father when and if it becomes appropriate  
9 and/or necessary to integrate Mother in the therapeutic process. That process shall not  
10 include Mother directly without Father's prior consent, absent a court order.
- 11 f. Both parties shall ensure that the minor child participates in, including attendance in all  
12 appointments that take place on days that the minor child is in that party's custodial care.  
13 So, if the minor child is staying with Mother on the day of therapy, it is Mother's  
14 responsibility to ensure that the child is present for reconciliation therapy.
- 15 g. Father shall advance the cost of reconciliation therapy and shall share the invoices and  
16 payment history with Mother. Mother shall reimburse Father 25% of any therapeutic  
17 expense not covered by insurance.
- 18 h. The parties shall return to Court on June 4, 2025, at 9:00 a.m., to confirm that a  
19 reconciliation therapist has been selected and therapy has begun.

20 10) On May 26, 2026, Father filed a "Status Declaration of Petitioner Lars B. Amble for Review  
21 Hearing Regarding Modification of Child Custody & Visitation," which has been read and  
22 considered by the Court.

23 **B. Findings and Order**

- 24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
27 child(ren) is the United States.
- 28 2) All existing orders remain in full force and effect.
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- 1 3) Given Father's May 26, 2026 declaration, the Court will continue the review hearing to  
2 **September 3, 2026, at 9:00 a.m., in Department 403.**
- 3 4) Mother shall give the minor child physical and emotional space around the therapy sessions.
- 4 5) Both parties shall serve and file an update declaration with the Court no later than 10 days prior to  
5 the next hearing, informing the Court of the progress and status of reconciliation therapy.
- 6 6) Counsel for Father shall prepare the Findings and Order After Hearing.
- 7 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
12 10 days may allow the other party to prepare a proposed order and submit it to the court in  
13 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JORGE RECINOS,

Petitioner

VS.

PATRICIA CARDONA,

Respondent

) Case Number: FMS-25-387600

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Jorge Recinos (Father) and Respondent Patricia Cardona (Mother). They share two minor children: Aaliyah Recinos (DOB: 02/03/09) and Briana Recinos (DOB: 01/12/10).
- 2) On November 24, 2025, Father filed a Request for Order seeking sole legal custody and sole physical custody of the minor children. Father states, “the children were abruptly and unilaterally taken from my custody by their mother. I formerly had anywhere between 25-50% custody. Limited to no time with their dad is disruptive and harmful to their well-being.”
- 3) On December 29, 2025, the Court continued the matter to February 2, 2026 for lack of service.
- 4) On February 2, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on February 17, 2026 and set the matter for return hearing on April 14, 2026.
- 5) On 4/2/26, Mother filed a Responsive Declaration in opposition to Father’s Request for Order. Mother seeks sole legal custody and sole physical custody, with visitation for Father at the discretion of the minor children who are 16 and 17 years old. Mother states the children have

1 refused to spend time with Father since September of 2025. Mother asserts safety concerns for the  
2 minor children when they are in Father's care.

- 3 6) On April 14, 2026, the parties were re-referred to FCS for further mediation at Petitioner's  
4 request. Further mediation was set for May 7, 2026 with a return on June 4, 2026. The Court  
5 adopted its tentative ruling and ordered counsel for Respondent to prepare the Findings and Order  
6 After Hearing (FOAH).

7 **B. Findings and Order**

- 8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
11 child(ren) is the United States.
- 12 2) Given that the parties did not reach any agreements at FCS Mediation, all existing orders shall  
13 remain in full force and effect.
- 14 3) Counsel for Respondent is ordered to prepare the FOAH for today's hearing and reminded the  
15 Court has yet to receive the FOAH from the April 14, 2026 hearing.
- 16 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
21 10 days may allow the other party to prepare a proposed order and submit it to the court in  
22 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

RUSSELL OLEVSKY,

Petitioner

VS.

JONATAS DE PAULA OLIVEIRA,

Respondent

) Case Number: FDI-22-797024

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ORDER RESPONDENT TO ADD ME ON HIS HEALTH

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Russell Olevsky and Respondent Jonatas De Paula Oliveira.
- 2) On 9/28/22, Petitioner filed a Petition for Dissolution indicating the date of marriage is 7/6/22 and date of separation is 8/31/22 for a marriage of 2 months.
- 3) On 10/27/22, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 7/4/22 and date of separation is 9/31/22 for a marriage of 3 months.
- 4) On 4/16/26, Petitioner filed a Request for Order (RFO) seeking an order for Respondent to add Petitioner to his health insurance. Petitioner states that he recently lost his health insurance because he was covered under the AIDs Drug Assistance Program (ADAP), which requires income above 138% of the poverty level; however, Petitioner's income has dipped below that threshold. Petitioner requests Respondent be ordered to add him to his health insurance because Respondent is employed by the University of California and has insurance available at a reasonable cost through his employer.

- 1 5) On 5/4/26, Respondent filed a Responsive Declaration in opposition to Petitioner's RFO.  
2 Respondent asserts that adding Petitioner to his health insurance would impose significant  
3 financial hardship on him and increase his costs from approximately \$45 monthly to \$300  
4 monthly. Respondent states he has ongoing medical expenses related to diagnosed heart failure.  
5 6) On 5/27/26, Petitioner filed a Reply Declaration disputing that adding a dependent to  
6 Respondent's insurance would impose significant financial hardship; however, Petitioner offers  
7 to reimburse Respondent up to \$3,000 annually for insurance coverage. Petitioner states he needs  
8 the best possible insurance because he is HIV positive.

9 **B. Findings and Order**

- 10 1) Petitioner's request that the Court order Respondent to add him to his health insurance is  
11 DENIED.  
12 2) The court generally will not order one party be added to another party's employer-based health  
13 insurance plan as a dependent during a dissolution proceeding.  
14 3) Further, Petitioner was not previously covered on Respondent's employer-based health insurance;  
15 therefore, there is no basis for the Court to maintain the status quo.  
16 4) This marriage is a very short-term marriage, so the parties are encouraged to focus on resolution.  
17 5) To advance in the dissolution process, either party may file an At Issue Memorandum to request a  
18 Status Conference at which time a Judicial Settlement Conference or trial date can be requested if  
19 it is determined that the parties are ready to proceed.  
20 6) The parties are encouraged to seek assistance from the ACCESS Center. Information for  
21 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)  
22 [center](https://sf.courts.ca.gov/access-legal-self-help-center).  
23 7) The Court will prepare the Findings and Order After Hearing.  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

VIRGINIA C CHATHAM,

Petitioner

VS.

REGGIO HEARN,

Respondent

) Case Number: FDI-23-798094

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STAY TRIAL AND PRE-TRIAL MOTIONS PENDING APPEAL; OST  
IN THE ALTERNATE

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Virginia C. Chatham and Respondent Reggio Hearn.
- 2) On 5/20/26, Petitioner filed an ex parte Request for Order seeking a stay on all pre-trial hearings and trial (set for 7/6/26 – 7/14/26) pending appeal of the Court’s order disqualifying Respondent’s counsel, which Respondent filed 5/11/26, or an order shortening time in the alternative. Petitioner filed a supportive Memorandum of Points and Authorities (file dated 5/19/26).
- 3) Respondent filed a Responsive Declaration in opposition to Petitioner’s requests (file dated 5/19/26). Respondent believes that staying all pre-trial hearings and trial is premature and should be determined after the 6/25/26 hearing on Respondent’s motion for relief from the Court’s disqualification order. Respondent further asserts that there are no grounds to continue pre-trial discovery deadlines. Respondent’s position is that Petitioner’s original disqualification motion was simply a tactic to delay trial.

- 1 4) On 5/20/26, Petitioner filed a Reply Declaration reiterating her position that a stay is necessary  
2 because Respondent filed a Notice of Appeal on 5/11/26, which stays the Court's order  
3 disqualifying Respondent's counsel. Petitioner opposes conducting pre-trial hearings and  
4 discovery with an opposing counsel that the Court disqualified. Petitioner asserts that discovery  
5 should be stayed and reopened once new trial dates are set as continuing discovery on business  
6 valuations and income available for support at this time will result in outdated information for  
7 trial.
- 8 5) On 5/20/26, the Court granted Petitioner's request for an order shortening time and set the matter  
9 for hearing on 6/4/26. The Court stated no further briefing is necessary.
- 10 6) On 6/1/26, Respondent filed a Responsive Declaration reiterating his position that staying all pre-  
11 trial hearings and trial is premature and should be determined after the 6/25/26 hearing on  
12 Respondent's motion for relief from the Court's disqualification order. Respondent reasserts that  
13 there is no good cause to continue or extend discovery, of which the cutoff date is 6/8/26.  
14 Respondent states that if the disqualification order is upheld on 6/25/26, Respondent will remain  
15 ready to proceed to trial with new counsel.

16 **B. Findings and Order**

- 17 1) Petitioner's request for a stay on all pre-trial hearings and trial (set for 7/6/26 – 7/14/26) pending  
18 appeal of the Court's order disqualifying Respondent's counsel is GRANTED.
- 19 2) All proceedings in this matter are hereby stayed pending resolution of Respondent's appeal filed  
20 5/11/26.
- 21 3) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 22 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
27 10 days may allow the other party to prepare a proposed order and submit it to the court in  
28 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

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|--------------------------|---|----------------------------|
| REGINA RUBY LEE CLEWLOW, | ) | Case Number: FDI-24-800270 |
|                          | ) |                            |
| Petitioner               | ) | Hearing Date: June 4, 2026 |
|                          | ) |                            |
| VS.                      | ) | Hearing Time: 9:00 AM      |
|                          | ) |                            |
| MARK S. DIZON,           | ) | Department: 403            |
|                          | ) |                            |
| Respondent               | ) | Presiding: BOBBY P. LUNA   |
|                          | ) |                            |

REQUEST FOR ORDER RE: ENFORCE RESPONDENT'S COMPLIANCE WITH 1/9/2025 S&O RE  
TEMP. SUPPORT; FCS 271

**TENTATIVE RULING**

The matter was continued to 9/22/26 by agreement of the parties. See Stipulation and Order filed 5/14/26.  
**No appearances are required on 6/4/26.**



SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

ISIVISI IRAI ALFARO,

Petitioner

VS.

ABEL PADILLA JR.,

Respondent

) Case Number: FDI-24-800504

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ORDER SHORTENING TIME

**TENTATIVE RULING**

On 5/21/26, Petitioner (Mother) filed an ex parte Request for Order seeking sole legal and sole physical custody of the parties' two minor children, with no visitation to Respondent (Father) pending hearing.

The Court granted Mother's request for sole legal and sole physical custody of the minor children pending hearing set for 6/4/26 (see Temporary Emergency (Ex Parte) Orders filed 5/21/26). Father filed a Responsive Declaration in opposition to Mother's Request for Order on 5/29/26.

On the Court's own motion, the 6/4/26 hearing is **continued to the Court's Readiness calendar on Monday, 6/8/26 at 9 AM in Dept. 403** as the issues raised in Mother's 5/21/26 Request for Order concern child custody and visitation, which require the parties attend mediation with Family Court Services (FCS) prior to the hearing. At the Readiness hearing on 6/8/26, the parties will be provided a mediation date and a new hearing date.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

KAYLA FLORES,

Petitioner

VS.

JEFFREY BRADFORD MARSHALL-NAIL,

Respondent

) Case Number: FDI-25-801160

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

**TENTATIVE RULING**

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) The parties are Petitioner Kalya Flores (Mother) and Respondent Jeffery Bradford Marshall-Nail (Father). They share two minor children: Mireia (DOB: 12/24/20) and Dorothy (DOB: 02/03/22).
- 2) On September 2, 2025, the matter was before this Court on Mother's Request for Order seeking sole legal and sole physical custody of the minor children with no visitation to Father.
- 3) The Court ordered Tier II interviews of:
  - a. San Joaquin County CPS worker Vanessa;
  - b. Father's Psychiatrist, Dr. Malisham, at the Stockton Veterans Administration; and
  - c. Father's Therapist.
- 4) The Court also ordered that Father have supervised visits at Rally Family Services (Rally) for 1 hour per week and set a review hearing for 12/04/25.

- 1        5) On November 26, 2025, Family Court Services (FCS) completed and submitted a Tier II report,  
2        which has been read and considered by the Court. The Court is troubled that no response was  
3        received from Dr. Viveros and Dr. Malisham (due to his retirement).
- 4        6) On December 4, 2025, the Court appointed Minor's Counsel and continued the matter to March  
5        5, 2026 for review of Minor's Counsel's report.
- 6        7) On March 5, 2026, the matter was heard and – after Minor's Counsel's oral update to the Court –  
7        the Court found good cause to continue the matter to June 4, 2026 to allow Minor's Counsel time  
8        to provide further report of progress.
- 9        8) As of the Court's review on May 31, 2026, the Court had not received update declarations from  
10       either party or an update from Minor's Counsel.

11 **B. Findings and Order**

- 12       1) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

|                 |   |                            |
|-----------------|---|----------------------------|
| WUYAN XU,       | ) | Case Number: FDI-25-801446 |
| Petitioner      | ) | Hearing Date: June 4, 2026 |
| VS.             | ) | Hearing Time: 9:00 AM      |
| SHADI BARHOUMI, | ) | Department: 403            |
| Respondent      | ) | Presiding: BOBBY P. LUNA   |

REQUEST FOR ORDER RE: BIFURCATE THE ISSUE OF MARITAL STATUS

TENTATIVE RULING

The Court received a default judgment (submitted 5/29/26) and Stipulation and Order vacating the 6/4/26 hearing, which the Court reviewed and signed. Accordingly, the 6/4/26 hearing was VACATED by agreement of the parties. **No appearances are required on 6/4/26.**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

FLOR MARQUEZ,

Petitioner

VS.

CRYSTAL V. MARQUEZ,

Respondent

) Case Number: FDI-25-802240

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATION OF STATUS OF MARRIAGE; REQUEST FOR  
ORDER RE: PRESERV. COMM. ASS. AND ALLOCATION OF DEBT

**TENTATIVE RULING**

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

I. Respondent's Request for Bifurcation and Termination of Marital Status Filed 2/10/26

**A. Procedural History**

- 1) The parties are Petitioner Flor Marquez and Respondent Crystal Marquez.
- 2) On 11/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 5/27/22 and date of separation is 11/5/25 for a marriage of 3 years and 6 months.
- 3) On 12/5/25, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 5/27/22 and date of separation is 11/5/25 for a marriage of 3 years and 6 months.
- 4) On 2/10/26, Respondent filed a Request for Order seeking bifurcation of trial and termination of marital status attached to which is form FL-315 (Request for Separate Trial). The matter was set for hearing on 4/28/26.

- 1 5) On 2/19/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for  
2 Order. Petitioner states Respondent has not shown good cause for bifurcation and termination of  
3 marital status and Petitioner and Petitioner's daughter (who is not Respondent's child) would lose  
4 health and mental health treatment as a result of bifurcation and termination of marital status,  
5 which they receive through Petitioner's Veteran's Affairs entitlements.
- 6 6) On 2/25/26, Respondent filed a Reply Declaration. Respondent asserts that Petitioner has access  
7 to employer-sponsored health insurance and Petitioner's adult daughter is not a child of the  
8 marriage.
- 9 7) On 4/10/26, Petitioner filed a Request to Reschedule Hearing due to a prior work obligation at the  
10 United States Immigration Court, which was granted over Respondent's objection (filed 4/13/26).  
11 The matter was continued to 6/4/26.

12 **B. Findings and Order**

- 13 1) **The parties are ordered to appear.**  
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15 II. Petitioner's Request for Order filed 4/10/26

16 **A. Procedural History**

- 17 1) At the prior 4/26/26 hearing, the Court ordered, in pertinent part: Respondent is permitted to stay  
18 in the property located at 20095 River Blvd. Mote Rio, CA 9546 to prepare and list the property  
19 for sale within 7 days; Respondent shall cooperate with the realtor to sell the property.
- 20 2) On 4/10/26, Petitioner filed a Request for Order seeking: (a) an order requiring Respondent to  
21 promptly execute all escrow, title, and loss mitigation requirements to clear an installation loan  
22 (Good Leap loan) lien on the property; and (b) allocation of the GoodLeap loan (approximately  
23 \$28,391.60) to Respondent as her sole and separate debt, with an order that Petitioner will be  
24 indemnified and held harmless for all resulting damage to the community estate caused by  
25 Respondent's failure to payoff of the GoodLeap loan and clear the GoodLeap loan lien on the  
26 property. Petitioner asserts that Respondent unilaterally encumbered the property through a  
27 GoodLeap loan taken in her name only during marriage without Petitioner's knowledge or  
28 consent. This loan created a UCC lien on the property. Petitioner states the GoodLeap loan must  
29 be paid off and a UCC termination recorded before the property can be sold. Petitioner asserts the

property is in active escrow with Fidelity National Title Company and the sale is anticipated to result in a deficiency without including the GoodLeap loan.

- 3) On 4/20/26, Petitioner filed a supplemental declaration, attached to which is a UCC Financing Statement by GoodLeap, LLC.
- 4) On 4/30/26, Petitioner filed a supplemental declaration attached to which is a forbearance plan offer for the property from Planet Home Lending for the period of 5/1/26 – 7/1/26.
- 5) On 4/30/26, Petitioner filed a supplemental declaration seeking a psychiatric evaluation of Respondent and appointment of an ellisor to execute a deed in lieu application by 7/26/26 to avoid foreclosure on the property. Petitioner asserts that Planet Home Lending requires the property be listed for 4 months before they will accept a deed in lieu application, which is due by 7/26/26 (within a month of when the forbearance period expires). Otherwise, Planet Mortgage may proceed to foreclosure sale. Petitioner requests appointment of an ellisor to sign: (a) all documents required by Planet Mortgage to complete the deed in lieu of foreclosure or short sale of the property; and (b) all documents required to release, satisfy, or resolve the GoodLeap lien encumbering the property.
- 6) On 5/1/26, Respondent filed a Request to Reschedule Hearing. Respondent seeks 45 days for stabilization of new psychiatric medicine. Respondent asserts she is not adequately able to prepare for or participate in the hearing.
- 7) On 5/1/26, Petitioner filed a Responsive Declaration to Request to Reschedule Hearing in opposition to Petitioner's request asserting imminent Court intervention is needed because the property is at risk of foreclosure.
- 8) On 5/21/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent asserts that she has fully cooperated with the sale of the property; however, the property is substantially over-encumbered and will inevitably result in a short sale or proceed to foreclosure. Respondent disputes Petitioner's characterization of the GoodLeap loan. Respondent states the forbearance period can be extended. It is Respondent's position that characterization and allocation issues should be reserved for trial. Respondent requests a Mandatory Settlement Conference so the matter may proceed toward final resolution.
- 9) On 5/28/26, Petitioner filed an additional supplemental declaration.

1 **B. Findings and Order**

2 1) As a preliminary matter, the Court declines to consider Petitioner's Supplemental Declaration  
3 filed 5/28/26 as neither the Code of Civil Procedure, the Rules of Court, nor the San Francisco  
4 Local Rules permit for the filing of such pleading without prior leave of Court.

5 2) **The parties are ordered to appear.**  
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